MOTOR TRADE ROAD RISK RENEWAL

Important information about this renewal

- We are pleased to invite renewal of this insurance policy at the premium stated overleaf. This premium is based on the details provided in the previous 12 months.
- You must tell us any information that may influence us in offering this renewal and the terms provided. If you are not sure if something is important or relevant you should tell your insurance adviser about it. Relevant information is something that could affect our decision to renew your policy or affect the terms of your policy.
- If you do not make a fair presentation of the risk and fail to advise us of any inaccuracies or omissions your policy may not protect you in the event of a claim.
- If you renew your policy for a further period of insurance you are confirming that a fair presentation of the risk to be insured has been made and that you agree with the following statements concerning use, previous history and claims history.

Fair presentation of risk

- If you accept our renewal quote you confirm that you have made a fair presentation of the risk to be insured and you agree with the following statements concerning use, previous history and claims history.
- If any relevant information has not been disclosed you will not have the full protection of the policy.

Use

* Please note AXA can at any time request proof of trade.

Except as otherwise disclosed to us in the information presented to us for the risk to be insured, we will provide cover based on the following statements being correct. The customer proposing for insurance, its Subsidiary Companies, or its partners or directors will not be involved in:

- The carriage of explosive, corrosive, toxic, inflammable, radioactive and hazardous substances
- The use of vehicles for 'Airside' use or in close proximity to aircraft

Previous history

Except as otherwise disclosed to us in the information presented to us for the risk to be insured, we will provide cover based on the following statements being correct.
No insurer in respect of the business to which this insurance policy relates, or any other business that the customer proposing for insurance, its Subsidiary Companies, or its partners or directors have been involved with has been

- declined or refused insurance cover or declared cover void
- refused to renew or cancelled any insurance for reasons other than non-payment of premium
- imposed any special terms or conditions.

The proposer for insurance, its partners or directors or any other person who plays a significant role in managing or organising the business activities, have not, either personally or in any business capacity, been convicted of a criminal offence or charged (but not yet tried) with a criminal offence.
Please note, this statement does not apply to motoring offences and/or convictions spent under the terms of the Rehabilitation of Offenders Act 1974 or any subsequent amendments to the Act.

In the last 5 years the proposer for insurance, its partners or directors or any other person who plays a significant role in managing or organising the business activities, have not, either personally or in any business capacity

- been declared bankrupt, been the subject of any bankruptcy proceedings or any form of insolvency or winding up procedures (including administrative receivership)
- been the subject of a recovery action by HM Revenue & Customs
- been prosecuted, served prohibition or served an improvement order or notice under Health and Safety legislation or Environmental protection legislation
- been disqualified from being a company director
- been the subject of a County Court or High Court judgement
- been a director of a company that has received a County Court or High Court judgement against it.

Claims history

All claims, losses or incidents suffered in the last five years (whether claimed for or not) have been fully disclosed to us.

The Insurance Act 2015

The Insurance Act 2015 introduced a number of reforms effective from 12th August 2016. AXA Insurance dac has already started to implement this in terms of claims handling and this notice contains the following endorsement which is incorporated into and forms part of the policy.

Endorsement

INSURANCE ACT CHANGES TO POLICY CONDITIONS

With effect from your renewal date the insurance provided by this policy is subject to the following clauses which will override and replace any conditions in the policy to the contrary.

Reference in this endorsement to we/our/you means AXA Insurance dac.

Reference to you/yours means The Insured named in the schedule of the policy.

Application of Warranties

1. Any reference in the policy to the proposal form/statement of fact/ information provided, as being the basis of the contract is removed.

2. Any term which uses the word “warranty” or “warranted” wherever it may appear in your policy shall be construed as a suspensory condition. This means that we will have no liability under the policy to indemnify you after the term has been breached until the breach is remedied by you.

Conditions Precedent

We will not rely on breach of a condition precedent to decline a claim if that condition was designed to reduce a loss of a particular kind at a particular location and/or at a particular time and you are able to prove that non-compliance with the condition could not have increased the risk of the loss which actually occurred in the circumstances in which it occurred.

Fraudulent claims

If any fraud is committed by you in relation to a claim under the policy then we will not pay that claim. We also elect to treat the policy as terminated from the date of the fraudulent act, in which case premiums are non-refundable.

Fair presentation of risk condition

You have a duty to make a fair presentation of the risk which you wish to insure. This applies prior to the start of your policy, if any variation is required during the period of insurance and prior to each renewal.

Failure to comply with the fair presentation of risk condition

1. If the failure to make a fair presentation of the risk is deliberate or reckless we can elect to make your policy void and keep the premium. This means treating the policy as if it had not existed and that we will not return your premiums, or
2. If the failure to make a fair presentation of the risk is not deliberate or reckless and we would not have provided cover had you made a fair presentation, then we can elect to make your policy void and return your premium or
3. If the failure to make a fair presentation of the risk is not deliberate or reckless and we would have issued cover on different terms had you made a fair presentation of the risk then we can:
   A. reduce proportionately any amount paid or payable in respect of a claim under your policy using the following formula. We will divide the premium actually charged by the premium which we would have charged had you made a fair presentation and calculate this as a percentage. The same percentage figure will be applied to the full amount of the claim to arrive at the proportion of the claim to be paid or payable; and/or
   B. treat your policy as if it had included the different terms (other than payment of the premium) that we would have imposed had you made a fair presentation.
4. Where we elect to apply one of the above then
   A. if we elect to make your policy void, this will be from the start of the policy, or the date of variation or from the date of renewal.
   B. we will apply the formula calculated by reference to the premium that would have been charged to claims from the start of the policy, or the date of variation or from the date of renewal
   C. we will treat the policy as having different terms imposed from the start of the policy, or the date of variation or from the date of renewal depending on when the failure to make a fair presentation occurs.

Sanctions laws

The Sanctions condition is also applied to your policy by the following endorsement which is incorporated into and forms part of the policy. This has been introduced to all policies and relates to legal sanction, prohibition or restriction under United Nations resolutions.

Endorsement

Sanctions condition

With effect from your renewal date the insurance provided by this policy is subject to the following clause.

Reference in this endorsement to we/our/you/us means AXA Insurance dac

Reference to you/yours means The Insured named in the schedule of the policy.

With effect from your renewal date this contract of insurance is subject to sanction, prohibition or restriction under United Nations resolutions. It is a condition of your policy that we will not provide cover, or pay any claim or provide any benefit under your policy to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose us, or our parent, subsidiary or any AXA group member company, to any trade or economic sanctions, or violate any laws or regulations of the United Kingdom, the European Union, the United States of America or any other territory.

Motor trade road risk policy schedule

Policy Number:	07/63/407326902
Effective Date:	30th June 2024 @ 00:01hrs
Expiry Date:	29th June 2025 @ 23:59hrs
Renewal Date:	30th June
Reason For Issue:	Renewal 2024

Broker

Name:	CIP Insurance Brokers
Address:	44, Main Street Crumlin Co Antrim BT29 4UR
Agency Number:	406373

Policyholder

Name:	Mr Gerard Brennan
Address:	10 Cairndore Gardens Newtownards Co Down BT23 8RB
Business Address:	
Business:	Sales, Service and Recovery

Premium:	£ 1325.09
IPT:	£ 159.02
Amount Payable:	£ 1484.11
Annual Premium (including IPT:	£ 1484.11

Type of Cover:	Road Risk: Comprehensive
Sections in force/Endorsements	MR03 Excluded Vehicles MR89 Limit of Indemnity Amended

On behalf of AXA Insurance dac:	Melanie Maginnis

AXA Insurance, The Ewart Building, 3 Bedford Square, Belfast, BT2 7EP, Northern Ireland. Tel: 0345 399 5346.
AXA Insurance dac, Wolfe Tone Street, Dublin 1. Registered in Ireland number 136155. AXA Insurance dac is authorised and regulated by the Central Bank of Ireland. Authorised by the Prudential Regulation Authority. Subject to regulation by the Financial Conduct Authority and limited regulation by the Prudential Regulation Authority.

Endorsements applicable to

Policy number:	07/63/407326902
Effective Date:	30th June 2024

MR03 Excluded Vehicles
The below General Exclusion 8 has been added to the policy and no cover applies to the below unless notified and accepted by us:
Excluded Vehicles
i. Vehicles owned and/or registered to individual directors, business partners, employees, family members or any person named on the Certificate of Motor insurance, other than you.
ii. Vehicles not owned by you, being used for any purpose other than the overhaul, maintenance, repair, service, testing or inspection of the vehicle.
iii. Vehicles owned and registered to the Insured which have been modified or adapted from the vehicle manufacturers original design, unless such modification or adaptation has been notified to and accepted by us.
iv. Any motorcycle or moped, unless cover has been extended by way of an Endorsement on the Schedule, to include your motorcycle, moped, scooter or quad bike, for use by you for Social Domestic and Pleasure purposes only.
v. Any Recovery Vehicle(s) unless owned by and registered to you and cover has been agreed by us in writing.
a. Vehicle Recovery Unit(s), NOT owned and registered to You
b. capable of carrying more than two vehicles
c. with a gross vehicle weight in excess of 7.5 ton.
vi. Vehicles being used for any use other than for Motor Trade or Social Domestic and Pleasure purposes, unless notified and accepted by us.
vii. Agricultural Vehicles, mechanically propelled plant or machinery.
viii. Steam-driven vehicles.
ix. Vehicles on any business/trade premises, forecourt or compound that is owned, leased and rented to you, any director or business partner, any family member including common-law family or any person named on the Certificate of Motor Insurance and any other motor traders' business premises unless the vehicle is owned by the Insured and registered in their name
x. Mobile Catering Vehicles
xi. Vehicles with a gross vehicle weight in excess of 7.5 ton.

MR89 Limit of Indemnity Amended
The Company shall not be liable for any loss of or damage to the vehicle in excess of £15,000 any one accident or occurrence or series of accidents or occurrences in connection with or arising out of one event

Law applicable To Contract

Your policy will be governed by the law of Northern Ireland unless you and we have agreed otherwise.

Data Protection Notice

AXA's Data Protection Statement contains all the information you need to understand how we use your data. If you didn't receive a Data Protection Statement with your policy documents, you can request a copy from either your broker or us at dataprotection@axa.ie.

Caring for our customers

AXA is committed to providing you with an excellent level of service and customer care. We realise that things can go wrong and there may be occasions when you feel that we have not provided the service you expected.
To assist you we have outlined our Customer Complaint Procedure below. Our focus is always on solving your problems first, and doing this swiftly. We then take steps to make sure the problem does not happen again. While we are dealing with your issue we promise to keep you informed of what is happening.

Customer Complaint Procedure:

There may be times when you feel you do not receive the service you expect from us.
This is our complaints process to help you.

- In the first instance, please contact your Broker or AXA on 0345 399 5346
- For a complaint about your claim, contact our Claims Team on 0345 828 2823.

If we cannot sort out your complaint, you can contact our Customer Care Department on 0800 039 1970 or:

- email: axacustomercare@axa.ie; or
- write to Customer Care Department, AXA Insurance, The Ewart Building, 3 Bedford Square, Belfast, BT2 7EP

If you are unhappy with the way we have dealt with your complaint, you may be able to refer to:
The Financial Ombudsman Service, Exchange Tower, London, E14 9SR

Ombudsman Service - Customer helpline
Monday to Friday – 8am to 8pm
Saturday – 9am to 1pm

- 0800 023 4 567 – Calls to this number are now free on Financial Mobile Phones and Landlines.
- 0300 123 9 123 – Calls t o this number cost no more than calls to an 01 and 02 number.

These numbers may not be available from outside the UK so please call from abroad on +44 20 7964 0500.
Email: complaint.info@financial-ombudsman.org.uk

It will only consider your complaint if:

- We have provided you with written confirmation that our internal complaints procedures have been exhausted.

Please note, you have six months from the date of our final response in which to refer your complaint to the FOS. Referral to the FOS will not affect your rights to take legal action.

Our promise to you

- We will reply to your complaint within five working days.
- We will investigate your complaint.
- We will keep you informed of progress.
- We will do everything possible to sort out your complaint.
- We will use feedback from you to improve our service.

Financial Services Compensation Scheme (FSCS)

AXA Insurance dac is covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation in the unlikely event we cannot meet our obligations to you. This depends on the type of insurance, size of the business and the circumstances of the claim. Further information about the compensation scheme arrangements is available from the FSCS (www.fscs.org.uk).

MTRR

Certificate of Insurance

Number of Certificate and Number of the Policy of Insurance: 07/63/407326902

PARTICULARS:

1. **Name of the Policyholder:** Mr Gerard Brennan

2. **Period of Cover:**
   From: 30th June 2024 @ 00:01hrs
   To: 29th June 2025 @ 23:59hrs

3. **Persons or classes of persons entitled to drive:**
In respect of vehicles being used for Motor Trade purposes:

1. (a) The Policyholder

(b) ----------MM

(c) Any person driving for demonstration, tuition or driving tests with the policyholder's permission provided he/she is accompanied by the policyholder or by a person named in 3.1 (b) above or by an examiner appointed by the licensing authority.

In respect of vehicles being used for social, domestic and pleasure purposes:

2. (a) The Policyholder

(b) ----------MM

provided he/she is driving on the policyholder's order or with his/her permission
Provided that the person driving holds a licence to drive such a vehicle or has held and is not disqualified from holding or obtaining such a licence.

4. **Description of Vehicle:**

Any Motor Vehicle the property of the Policyholder or in his/her custody or control in connection with their Motor Trade business, with the exception of any vehicles that fall under the Excluded Vehicles section of the policy (unless cover has been extended by way of an Endorsement on the Schedule)

5. **Limitations as to Use:**

(i) Use for Motor Trade purposes including the carriage of goods

(ii) Use for social, domestic and pleasure purposes by the policyholder or by a person named in 3.2 (b) above

(iii) ----------MM

The policy does not cover -

1. Use for hire or reward (other than for demonstration, tuition or driving tests) of any goods-carrying vehicle
2. Use for Private Hire of any vehicle, which has more than eight seats, including the driver's seat
3. Use for the conveyance of passengers for hire or reward (other than for the purposes of Private Hire, tuition or driving tests)
4. Use for racing, pace-making, reliability trail or speed testing
   The term 'Private Hire' means the letting of a vehicle supplied to the hirer direct from the policyholder's garage. Use solely for breakdown purposes or use under a Trade Plate for the carriage of goods for demonstration purposes in accordance with the Regulation applicable to Trade Licences is not deemed to be use for hire or reward
5. Use to secure the release of any motor vehicle which has been seized by or on behalf of any government or public authority which was not the property of or in the custody or control of the policyholder at the time of the seizure. The term 'Private Hire' means the letting of a vehicle supplied to the hirer direct from the policyholder's garage. Use solely for breakdown purposes or use under a Trade Plate for the carriage of goods for demonstration purposes in accordance with the Regulation applicable to Trade Licences is not deemed to be use for hire or reward.

Termination of the Insurance to which the company may on request agree, will operate only from the return of this certificate

I hereby certify that the policy to which this certificate relates satisfies the requirements of the relevant law applicable in Great Britain, Northern Ireland, the Isle of Man, the Island of Guernsey, the Island of Jersey and the Island of Alderney.

On behalf of Vehicle Insurer:

Melanie Maginnis

Date of Authentication: 07/06/2024

L Whelan

Lisa Whelan
Company Signature

Signature or Seal of Vehicle Insurer
AXA Insurance dac,
Wolfe Tone House,
Wolfe Tone Street,
Dublin 1.

European Cover

This certificate and the insurance policy to which it relates only applies in respect of incidents occurring in member countries of the European Community. Cover also applies in other countries which have satisfied the requirements of the Commission of the European Community namely; Norway, Switzerland and Iceland.

This statement is repeated in the following languages: French, German, Italian and Spanish. The following wording forms part of the Spanish translation which should be presented to the Spanish authorities in the event of the vehicle being impounded.

Este Certificado y la póliza de Seguros a al cual se refiree, son de aplicaclön a los accidentes que occuran en cualquiera de los paises miembros de la Comunldad Econömica Europea. Asimismo sa cubren loss accidentes que occuran en los siguientes paises que reunen las conndiciones reqeridas por la Comisiön de la Comunldad Economica Europea: Norvegia, Iceland y Suiza.

Ce certificat et la police d'assurance relative s'appllquent á l'egard des incidents qul ont lieu aux pays membres de la Communauté Européenne. La couverture est aussi acquise aux autres pays qui s ont rempli les conditions de la Commission de la Communauté Européenne, c'est-á-dire: la Norvége, Iceland et la Suisse.

Versicherungsschutz wird für Versicherungsfälle in allen Mitglidsländern der EG gewärt. der geltungsbereich erstreckt sich auch auf andere Länder, die Enforderhisse der Kommission der EG erfüllt haben, nämlich: Norwegen, Iceland und die Schweiz.

Questo Certifcate y la polizza dl'sicurexxa a cui fa riferenza sl applica per gli incidentl che occorrono nei paesl della comunita Europea. L'assicurazlone si applica anche negll altri peasl che hanno soddisfato l'esigenze delle autoria della Communita European cioé: Norvegia, Iceland et Svizzera.

Spain only

In the event of an accident which is or might be the subject of indemnity under the policy AXA Insurance authorise; GROUPAMA IBERICA SEGUROS S.A., AVDA. DIAGONAL 523-3 08029 BARCELONA to make a guarantee or deposit up to £1,000 in order to obtain the release of the vehicle and/or the insured and/or the person authorised to drive the vehicle from official detention.

Fianza Carcelaia
Al ocurir un accidente que sea o pueda ser objecto de indemnizacion con cargo a la Pòllzza, AXA autorizza a GROUPAMA IBERICA SEGUROS S.A, AVDA DIAGONAL 523-3, 08029 BARCELONA, a constituir fianzas carcelarias en favor del Asequrado y/o de la persona authorizda a conducir el vehiculo, asi como depositos requeridos para garantizar la liberaciòn dei vehiculo, hasta la cantidad en conjunto de £1,000 (mil Libras Esterlinas) o su equivalente en Euro.

If you require claims assistance please contact your Broker or phone the AXA 24 hour claims helpline at 0845 828 28 23.

Note: An International Motor Insurance Card (Green Card) is not necessary under European Law within the territorial limits shown, but is still available on request. Check with AXA to see what Countries require a Green Card.

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